

**106 IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH****CRM-M-34114-2026****Date of Decision: June 19, 2026****Rahul****...Petitioner****Versus****State of Haryana****...Respondent****CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA****Present:-** Mr. Vikas Bairagi, Advocate for the petitioner.
Mr. Anuj Garg, DAG, Haryana.**DEEPAK GUPTA, J.(Oral)**

Prayer in this petition under Section 482 BNSS is for grant of anticipatory bail in case FIR No.220 dated 15.05.2026, registered at Police Station K.U.K, District Kurukshetra, under Sections 319, 213(18)(4) and 61(2) of BNS, 2023 (416, 179 and 120B of IPC).

2. As per the allegations, the examination of 10th class was going on in Examination Centre Gurukul, Kurukshetra. On suspecting that a girl was appearing in place of the real candidate, the duty staff enquired the matter and found that one Sonia was impersonating as a candidate in place of Tannu. The matter was further enquired into and it was found that Partap and petitioner – Rahul had contacted one Vinod Kumar to arrange a girl, who can appear for Tannu. It is only thereafter that Sonia was arranged to impersonate Tannu to appear in the exam. It was also found that an amount of ₹4,000/- was received in the account of Vinod Kumar, having been transferred by the petitioner.

3. Learned counsel for the petitioner contends that petitioner has been falsely implicated; that he is not the brother of Tannu as is observed in the order passed by learned Addl. Sessions Judge; that he has no concern with Vinod Kumar or Partap. Learned counsel also submits that the petitioner is ready to join investigation.

4. On the other hand, learned State counsel, appearing on advance notice, has shown this Court the disclosure statement of co-accused – Vinod Kumar, who had been arrested and who disclosed that Rahul (petitioner herein) and Partap had contacted him to arrange the girl to appear in the exam in place of Tannu. Besides, in case the petitioner did not know Vinod Kumar or Partap, it is not forthcoming as to how the amount of ₹4,000/- was transferred in the account of Vinod Kumar by the petitioner.

5. Having noticed the aforesaid facts and circumstances, custodial interrogation of the petitioner may be necessary to probe the entire truth. It is not a fit case for grant of anticipatory bail. As such, the present petition is hereby dismissed.

June 19, 2026

sarita

(DEEPAK GUPTA)
JUDGE

Whether reasoned/speaking:
Whether reportable:

Yes/No
Yes/No